

GRIEVANCE RESPONSE

at

**Step 3 of the Memorandum of Understanding Between the
City of Oakland and Oakland Police Officers Association**

Grievant: Lieutenant Alan Yu (#8605)
Violation of Manual of Rules Section 234.00-2 (Class 2)
Internal Affairs Case No. 18-0249

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TABLE OF CONTENTS

	<u>Page</u>
I. INTRODUCTION	1
II. SUMMARY OF CONCLUSIONS	2
III. CORE ANALYSES BY CHIEF KIRKPATRICK, CPRA, COMPLIANCE OFFICER, DISCIPLINE COMMITTEE, AND SKELLY OFFICER.....	2
A. Chief Kirkpatrick’s Analysis	2
B. CPRA Analysis	3
C. Compliance Officer’s Disciplinary Determination	9
D. Oakland Police Commission Discipline Committee Report.....	9
E. Skelly Officer’s Analysis	9
IV. SUMMARY OF STEP 3 MEETING	12
V. DISCUSSION	14
A. Culpability.....	14
B. Disciplinary Penalty	15
VI. CONCLUSION.....	15

I. INTRODUCTION

Underpinning this case are allegations of misconduct by six Oakland Police Department (OPD) sworn personnel¹ involved in a shooting on March 11, 2018 that took the life of Joshua Pawlik (Pawlik). As is extensively detailed in a companion Report, allegations of excess use of force lodged against the four Department members who discharged their weapons in that incident were ultimately sustained, resulting in their termination. Sergeant Francisco Negrete (Sgt. Negrete) was held not only to have also engaged in an excess use of force, but to have committed a “Class 1” violation of Manual of Rules (MOR) 285.00 (e.g., “Failure to Supervise, Class 1”), and was similarly terminated based on both violations.

A lower level (“Class 2”) allegation of Failure to Fulfill Command Responsibilities in violation of MOR 234.00 was sustained against Lieutenant Alan Yu (Lt. Yu), who was Incident Commander. For his role in the incident, Lt. Yu was initially slated for demotion, but that discipline was later reduced to a five-day suspension.

Over the 11 months following the shooting, the allegations against Lt. Yu and other involved sworn personnel were reviewed by the City of Oakland’s (City’s) Internal Affairs Division (IAD), the Alameda County District Attorney’s Criminal Investigations Division (CID), the City Citizen’s Police Review Agency (CPRA), the OPD Executive Force Review Board (EFRB), federal Compliance Director Robert Warshaw, the Oakland Police Commission’s Discipline Committee, and Skelly Officer Michael Gennaco. The companion Report, supplemented by extensive documentation generated during the internal review processes, is provided under separate cover and incorporated by reference herein. It contains findings and conclusions supporting an overall “exonerated” finding on the excess use of force allegations against the four officers who discharged their weapons in the incident. Those findings and conclusions are essential reading prior to review of this report. A second report concerning the excess use of force and “failure to supervise” allegations against Sgt. Negrete is also essential reading prior to review of this report, and is similarly provided under separate cover and incorporated by reference herein.²

The sole issue in this grievance is whether Lt. Yu’s five-day suspension was appropriate.

¹ Lieutenant Alan Yu; Sergeant Francisco Negrete; and Police Officers Brandon Hraiz, Josef Phillips, Craig Tanaka, and William Berger. These members of the Department are collectively referenced herein as “officers” or “Members.”

² On behalf of the five other departmental personnel, Mike Rains – legal counsel for the other five departmental personnel – consented to disclosure herein of the reports of those five individuals.

II. SUMMARY OF CONCLUSIONS

I understand that the findings and conclusions in this Report shall be treated as recommendations. With that understanding, my conclusions are as follows:

Alleged Failure to Fulfill Command Responsibilities (violation of MOR 234.00):

Sustained as a Class 2 violation.

Appropriate Discipline: I recommend the five-day suspension be Sustained.

Overall: Grievance denied.

III. CORE ANALYSES BY CHIEF KIRKPATRICK, CPRA, COMPLIANCE OFFICER, DISCIPLINE COMMITTEE, AND SKELLY OFFICER

The companion Report and Negrete Report detail the extensive processes followed in assessing allegations against OPD personnel due to the shooting of Pawlik on March 11, 2018. Lt. Yu's culpability in the incident was assessed at each level of the process, but with a lower level of intensity: he was not actively involved in the shooting, and (unlike the situation with Sgt. Negrete) he was accused of a "Class 2" violation of MOR 234.00 instead of a more serious "Class 1" violation of that MOR. Under the OPD's Discipline Policy (Training Bulletin V-T) and associated Disciplinary Matrix, a "Class 1" violation of MOR 234.00 can potentially result in termination, whereas the established range for a "Class 2" violation typically ranges from counseling to a five-day suspension. The Chief, however, has authority to deviate from that recommended range based on mitigating and aggravating circumstances.

The two companion Reports described above discuss the elaborate processes by which the allegations against the four officers and Sgt. Negrete were assessed. In this case, a review of the determinations of former Chief Kirkpatrick, the CPRA, the Compliance Officer, the Disciplinary Committee and the Skelly Officer more than adequately address the issues herein.

A. Chief Kirkpatrick's Analysis

In her Addendum to the EFRB Report, Chief Kirkpatrick summarized the recommendations of prior reviewers and analyzed Lt Yu's culpability as follows (p.4, emphasis in original):

Lieutenant Yu, Allegation: Violation of MOR 234.00-2, Failure to fulfill his command responsibilities.

Initially, IAD recommended Lieutenant Yu be exonerated for his supervision of the scene as the Commanding Officer. During the first round of EFRB deliberations, the Chair of the Board sent IAD back for further review of the facts and circumstances, including further exploration of supervisory responsibilities of incident commanders with an

appropriate SME. The Board also directed that an IAD Commander with Incident Commander experience make the analysis and recommendation. At the second convening of the EFRB, IAD changed its recommendation from Exonerated to Sustained. The Board unanimously voted that there were shortcomings in Lt. Yu's exercise of his command responsibilities and oversight. In my review, I found Lieutenant Yu took many appropriate actions that I expect of a commander over a critical incident. His statement revealed his critical thinking skills. For example, he took command action when he overruled Sergeant Negrete's assignment of less lethal from Sergeant Webber to Officer Phillips. He also made sure that his sergeants were dispersed properly around the perimeter and ensured medical was staged. However, I agree that Lieutenant Yu deferred to Sergeant Negrete too much and he should have had more firm control of the management of the scene as articulated by the Board. I also agree that after he was briefed by Sgt. Negrete, Lt. Yu should have recognized that Sgt. Negrete failed to plan for one of the three basic contingencies all DAT leaders must consider – i.e., how to react to foreseeable exigencies created by the suspect. Accordingly, for the reasons stated in IAD's Addendum Memorandum (dated 8 Jan 19) and the Board's report, I find Lieutenant Yu **Sustained for a class 2 violation of command responsibilities.**

B. CPRA Analysis

The CPRA report amply and accurately sets forth the basis for its decision to Sustain Lt. Yu's violation of MOR 234.00 as follows (pp. 41-44):

A. Lt. Yu failed to understand the situation and the mission, and formulate a plan pertinent to the high-risk situation.

Lt. Yu did not have a complete understanding of what plans were in place, and as such, he did not participate in an overall strategy, that was unique to the circumstances of this scenario. He left the planning almost entirely up to Sgt. Negrete.

In his interview of August 29, 2018 with Internal Affairs, Lt. Yu said that Sgt. Negrete came out to talk to him, "And based on our conversation, I knew we were on the same page what we wanted to do." Yet he admits, "we kind of talked about it slightly. It wasn't a formal sit down, 'Here is what we're going to do' set-up. But first thing out of his mouth was like, 'We're not going to do anything until the BearCat gets here.'" Lt. Yu also said, "... me and him was very much on the same page, he was doing everything that I would also if I was a sergeant at the time. So, that's why I didn't really need to go elaborate into what his plans were. And he was a veteran officer with tactical SWAT experience. He probably knew more than me. I trusted his judgment." Since Lt. Yu didn't solicit necessary details, and relied instead on trust, Lt. Yu failed to recognize the deficiencies in Sgt. Negrete's plan. It was Lt. Yu's obligation to elicit sufficient detail from him.

Lt. Yu did not elicit sufficient detail of the plan to make sure the plan was complete, that it had the necessary contingencies, and that he had sufficient information to evaluate it. Lt Yu did not question if officers were assigned to cover the necessary roles. He did not question Sgt. Negrete as to contingency planning. Lt. Yu did not discuss the potential that Mr. Pawlik could be startled awake by any of Sgt. Negrete's plan. They did not discuss what would happen if Mr. Pawlik awoke, and did not comply with the orders to surrender. They did not discuss the precariousness of the situation at hand, and if there was a way to facilitate dialogue none-the-less if possible if Mr. Pawlik didn't initially comply. They discussed the BearCat coming, but other than that, there was no discussion of how it was to be used in particular. Lt. Yu said he ensured that less-lethal was available, but didn't discuss with Sgt. Negrete how less-lethal could be employed.

In his interview with Internal Affairs, Lt. Yu was asked about other forms of active resistance other than if the guy wakes up and points a gun at the officers, like "the guy gets up and starts walking towards you, holding a gun or he starts running right at you? Anything like that?" Lt. Yu stated, "There are so many contingencies. That's not a detail that I would go through with the officers or even Sgt. Negrete. That's an assumption. That is something that the DAT is going to prepare themselves." Lt. Yu at another point in his IA interview stated he didn't want to "micromanage" that portion of the DAT. However, Lt. Yu failed to recognize that as the scene commander, there is a difference between micromanaging and making sure contingencies and plans are in place. Lt. Yu stated, "there are so many contingencies;" but a commanding officer's duties include making sure those have been considered. A commander is required to have a "trust but verify" approach.

B. Lt. Yu failed to properly determine from Sgt. Negrete if specific plans had been formulated to accept a surrender, deal with an escape and handle exigent circumstances.

Sgt. Negrete discussed his plan with Lt. Yu. The description he gave to Lt. Yu was that once the BearCat gets here, we'll make some announcements. Nothing, thump him, beanbag, nothing. Tase him, right, nothing, then we'll move the shields. I'm pretty confident though if he is going to be responsive, that beanbag is going to get his attention real quick. Lt. Yu says yeah. Lt. Yu says we'll do announcements, uh, holding up this thumb and pausing. Sgt. Negrete says sirens. Lt. Yu then brings up the suggestion of a dog (which Sgt. Negrete rejects).

Lt. Yu was asked in his IA interview, if there was any plan or discussion about if Mr. Pawlik woke and was not compliant; he wakes up, and "You say, 'put the gun down', and he says, 'No I'm not going to put it down'." Lt. Yu responded, "we're not going to talk about all the scenarios of what he's going to do with that gun because at that point that's a lethal situation that the DAT will be responding to. We know the DAT responded to it, and that's up to Sgt. Negrete at the DAT to make the decision based on where the gun is, how far he is." However, this shows

that Lt. Yu failed to determine if Sgt. Negrete had a specific plan for surrender, deal with an escape, and handle exigent circumstances as he is required to do as he was required to do. Lt. Yu failed to understand that such planning helps to prevent a lethal situation. Thus, Sgt. Negrete's failures are also all Lt. Yu's, when it comes to the plan having with missing parts and contingencies.

C. Lt. Yu failed in his duty to observe personnel conducting counterproductive actions, and take action to correct this.

The Incident Commander should observe the DAT sergeant in charge also, to make sure that the sergeant is acting in accordance with OPD's rules and training, and make corrections as necessary. If he observes any personnel conducting counter-productive actions depending on the nature and severity, the Commander should take action to correct this. Lt. Yu was situated on the street on the other side of the divider. He could have or should have seen what Sgt. Negrete and the officers were doing. Sgt. Negrete was holding his rifle up focused on Mr. Pawlik for at least ten minutes prior to the BearCat arriving. After it was in place, Sgt. Negrete held his rifle up again. Lt. Yu should have seen Sgt. Negrete holding up his rifle towards Mr. Pawlik, as well as Officer Berger, Officer Hraiz, and Officer Phillips, and questioned the role of Sgt. Negrete in it. He also does not appear to have seen Officer Tanaka with a rifle pointed at the subject.

D. Lt. Yu failed to ensure that ancillary duties were being done.

There was a lapse in the relating of the plan to the perimeter. Sgt. Ann Pierce, who was at the perimeter, stated in her interview with IA that she wasn't there for any planning, nor was she later informed of what the plan was. Lt. Yu was asked in his Internal Affairs' interview of August 29, 2018 if he thought that Sgt. Pierce and the officers in the rear perimeter had a good idea what the plan was. Lt. Yu said "I don't know," even though it is his job to ensure that ancillary duties, such as the perimeter are done. If Mr. Pawlik got up and ran back behind the walkway though, Sgt. Pierce and the other officers present would not have been aware of any plans. Lt. Yu said, "I would say I wouldn't announce the DAT plans to officers in the rear, but if we ever got at that point to where we are going to use the less-lethal, it'll be announced." Lt. Yu stated that Sgt. Pierce was "new," yet his plan was to wait to announce plans to her:

E. Lt. Yu failed to know what resources he had on scene, and what resources needed to be requested.

Lt. Yu relied on Sgt. Negrete's expertise with SWAT. But Sgt. Negrete is also a SWAT member, not a SWAT team leader. Lt. Yu should have had the superior knowledge and experience to recognize that more expertise was needed in this scenario, and helped Sgt. Negrete formulate the best plan possible under the circumstances. Sgt. Negrete is a first-line supervisor, and Lt. Yu is a superior commander to him. Lt. Yu foresaw that this could be an OIS; he called Sgt. Rowley back away from the scene where the officers were observing Mr. Pawlik

for this reason. Yet he offered little help to Sgt. Negrete as far as tactics or call for assistance for other available resources within OPD in an effort to reduce the risk of injury or loss of life. Lt. Yu said that “life was the number one goal or concern here,” but only the life of the officers seemed to be his concern, not that of Mr. Pawlik as well if possible.

Lt. Yu failed to maximize resources. A commander should know what resources he/she has on scene, and what resources need to be requested. Lt. Yu had the option of deploying or requesting the deployment of the Tactical Operations Team, or to include CIT (Crisis Intervention Training), which the facts show he did not consider (Yu interview with IA). As set forth in DGO K-5, during critical incidents the Tactical Operations Team can be called out as a resource for handling the appropriate critical incidents. It consists of tactical commanders, the entry team, the sniper team, and the hostage negotiation team in high-risk operations. This was a situation with a man with a gun in his hand in a high-risk situation but whom they wanted to detain for likely some type of firearm in public charge. The expertise of the Tactical Operations Team as a resource could have helped with the planning. A deeper level of expertise would have been advisable given the situation presented a person whom they wanted to detain, with a gun in his hand pointed towards officers; the possibility of the subject being drugged or drunk was high; the subject’s life and the lives of others were at stake; and the situation was taking place in a heavily residential area. Lt. Yu was asked in his Internal Affairs interview of August 29, 2018 if he requested an HNT (Hostage Negotiation Team). He did not. Asked if this could have been of benefit to him, Lt. Yu said no, because “We can’t even get him to wake up.” Lt. Yu was asked, “What about later on? Let’s say hypothetically of course he wakes up and then you’re trying to have a dialogue with him. Would that have provided any help?” Lt. Yu’s response was “Yeah, that would change the incident. It would change the factors. If we’re able to communicate, HNT would be very useful.” Thus, Lt. Yu himself after the fact acknowledged that HNT being on scene in advance in case Mr. Pawlik woke would be very useful, if the opportunity arose to talk to him, but failed to add it to the plan.

Similarly, Lt. Yu said in his Internal Affairs Interview that he knew a lot of his officers were CIT trained, but “I can’t say which ones exactly.” Again, his reasoning was “You can’t get CIT anything without communication.” He was asked hypothetically about having CIT officers there to consult with Mr. Pawlik if communication could be established. Lt. Yu admitted that “Similar to HNT, it would be helpful if you could establish communication.” Lt. Yu failed to understand that establishing communication if possible in high-risk situations is not only “helpful,” but critical when possible.

Lt. Yu said that he had not received formal or informal training as to the capabilities of the BearCat. Yet he stated, the “biggest thing is the cover and the tools that are inside.” Nonetheless, despite this, there was no discussion of what the “tools” were with Sgt. Negrete, and to get Sgt. Negrete’s or other OPD

expert's thoughts as to whether any of those tools could have been used. If Sgt. Negrete did not have that expertise, he had the ability to call for assistance from others in the department who might.

Therefore, because Lt. Yu had been properly trained as a Commander in Critical Incident Management, yet failed to properly supervise for the reasons stated above, it is found that based on a standard of a preponderance of the evidence, Lt. Yu should be sustained for failure to properly supervise.

FINDING: SUSTAINED

The CPRA also concluded that Lt. Yu's conduct was properly classified as a "Class 2" violation instead of a "Class 1" violation, explaining as follows (pp. 45-46):

Per DGO M-3, complainants against Departmental Personnel shall be categorized as Class I or Class II offenses. Class I and Class II violations per DGO M-3 are defined as follows: Class I violations against Departmental Personnel or Procedures, are the most serious allegations of misconduct and, if sustained, shall result in disciplinary action up to and including dismissal and may serve as the basis for criminal prosecution. Class II offenses shall include all minor misconduct offenses.

Per DGO M-3, a Class I violation for a supervisor includes under subsection E., m. (pp. 5), the "failure of a supervisor/manager to properly supervise, and/or take corrective action' for misconduct that he/she knew about or reasonably should have known about."

Looking at the Discipline Matrix found under Training Bulletin V-T "Discipline Policy Appendix," there are two types of MOR classes for a supervisor, and two for commanding officers. The more serious offenses are those that involve gross dereliction of duty, which would be Class I violations, and the lesser violations that involve minor misconduct, would therefore be the Class II violations.

MOR 175.99 defines "Gross Dereliction of Duty" as the failure to use reasonable care to protect life and/or property and to safeguard the legal rights of individuals. Gross dereliction of duty is characterized by carelessness and a reckless disregard for the consequences of the member or employee's conduct.

Looking at what would be gross derelictions of duty under the Discipline Matrix, there are terminations for conduct such as the following: workplace violence; harassment and discrimination; failure to assist a fellow officer; criminal conduct; intentional search and seizure; planting evidence; failure to obey laws; failure to obey a lawful order; failure to report misconduct; soliciting or accepting gratuities; sexual activity on duty; falsely reporting an illness or injury; consumption of intoxicants; collision with gross negligence; accessing inappropriate websites; illegal uses of force; conduct effecting the security of

department business; conduct compromising criminal cases; assisting criminals; belonging to subversive organizations; refusing to testify; interfering with investigations; retaliation; truthfulness; and a refusal to accept or refer a complaint.

There are in these allegations conduct that causes harm to the public service; lack of integrity; conduct that effects the integrity of the department; conduct that is vital to effective law enforcement; conduct that has broken or diminished public trust and confidence; constitutional rights violations; criminal law violations; violence and gross indifference to duty; conduct that is willful and deliberate; or that shows a reckless disregard for consequences. Using this type of conduct as the standard, the CPRA categorized the supervisory allegation for Lt. Yu as a Class II violation.

Lt. Yu failed to elicit sufficient information regarding Sgt. Negrete's plan. He did not question Sgt. Negrete regarding contingency planning, and ensure such planning in all necessary areas was in place. Lt. Yu did not help ensure a plan was in place unique to the circumstances. Lt. Yu did not call in special assistance that could have been utilized to react to various circumstances that could have transpired. Lt. Yu should have seen Sgt. Negrete holding up his rifle in the direction of Mr. Pawlik multiple times. Lt. Yu relied too heavily on Sgt. Negrete based on their past relationship, trust and presumed level of expertise, rather than the facts before him: There was also a lapse relating to the plan for the perimeter security. Lt. Yu was a passive participant on many levels on scene, and failed to carry out many of the duties and responsibilities required of a Commander. All these are discussed in the analysis of Allegation 7, above.

However, Lt. Yu arrived on scene and had Sgt. Negrete take lead of the DAT since he had DAT experience. Lt. Yu discussed the plan with Sgt. Negrete that he had formulated, and thought it sounded good. He assigned Sgt. Pierce to be perimeter and traffic. He had Sgt. Rowley evacuate homes to the east of the subject.

The plan here was basic and missing contingencies. However, generally the law does not require a particular plan or that risks be taken. If a person is a lethal threat, an officer has a right to use lethal force whether or not any plan was in place. Therefore, for these reasons, Lt. Yu's misconduct was determined by the CPRA to be a Class II violation.

Notably, the CPRA report does not itself include any specific recommendations regarding the appropriate level of discipline for Lt. Yu's Class 2 violation of MOR 234.00. As is discussed below, the Oakland Police Commission's Disciplinary Committee Report states at page 2 that the CPRA recommended a "demotion" for Lt. Yu, but that recommendation is not reflected in the available documentation.

C. Compliance Officer's Disciplinary Determination

In his Disciplinary Determination, the Compliance Director sustained a Class 2 violation with a five-day suspension penalty (not demotion), stating (p. 3):

On 11 March 2018, Lieutenant Yu was the on-scene incident commander for an event that involved a lethal use of force resulting in the death of Joshua Pawlik. Lieutenant Alan Yu failed to fulfill his command responsibilities during the incident, in violation of Oakland Police Department rules, regulations, and/or policies. On 22 February 2019, I waived the discipline process based on the seriousness of this case, the number of officers involved, and to preserve the confidentiality of the investigative material. Lieutenant Yu's conduct resulted in a SUSTAINED finding for a violation of MOR 234.00-2 Command Officers – Authority and Responsibilities. Given the severity of the violation and the resultant consequences, coupled with my review of the range for this violation listed in the Discipline Matrix, I have determined that a suspension of five (5) days is warranted in this case.

D. Oakland Police Commission Discipline Committee Report

The Discipline Committee's Report begins with a summary (pp. 2-3) of the recommendations made by the CPRA and Compliance Director. As is set forth above, both of those reviewers sustained a Class 2 violation of MOR 234.00 against Lt. Yu. The Discipline Committee also states that the CPRA recommended Lt. Yu be demoted for that violation, while the Compliance Director recommended only a five-day suspension.

As noted in the Companion reports, the Discipline Committee's Report discussed the Committee's reasoning regarding the excess use of force allegation against the four Officers and Sgt. Negrete. It did not, however, include any substantive discussion of why it upheld the CPRA's reported recommendation Lt. Yu be demoted (instead of merely suspended, as recommended by the Compliance Director) for his Class 2 violation of MOR 234.00. Instead, the Discipline Committee summarily sustained the allegation and recommendation as follows (p.8):

Both CPRA and Chief Warshaw found that the allegation that Lieutenant Yu failed to properly perform his duties as the Incident Commander in violation of MOR 234.00-2 Command Officers - Authority and Responsibilities, Class II as SUSTAINED.

The Committee concludes that a DEMOTION is the appropriate discipline.

E. Skelly Officer's Analysis

Lt. Yu's Skelly notice proposed that he be demoted, consistent with the Discipline Committee Report. In his Skelly response, Lt. Yu asserted that (a) discipline could not lawfully be imposed on him because the Department's action was outside the 1-year statute of limitations under

Government Code section 3304(d);³ (b) the Department had failed to prove any violation by him of MOR 234.00; and (c) in any event, the penalty of demotion is not authorized by the Department's Discipline Policy/Disciplinary Matrix for a Class 2 violation of MOR 234.00. Addressing the issue of Lt. Yu's culpability for violating MOR 234.00, the Skelly Officer observed (pp. 29-30):

OPD's EFRB unanimously found that in this incident the three main responsibilities of a DAT (arrest subject, prevent flight, react to contingencies) were lacking and that Lieutenant Yu failed to rectify these shortcomings. EFRB also expressed as "troubling" the fact that Sergeant Pierce, who was on scene and in charge of the rear perimeter, was not aware of who the incident commander was. One Board member said this spoke to a larger theme that there was a lack of firm communication from the incident commander to all involved members as to exactly what the plan was.

A Board member also specifically remarked that there were also failures after the use of deadly force, such as the issues with officer sequestration, which were the fault of Lieutenant Yu. The Board member also remarked that Lieutenant Yu should have seen Sergeant Negrete carrying a rifle and told him to store the rifle and concentrate on leading the DAT.

While the Chief found that while Lieutenant Yu took many appropriate actions expected of an incident commander, she agreed that Yu deferred to Sergeant Negrete too much and should have had more firm control of the management of the scene as articulated by the EFRB. The Chief also agreed that after Lieutenant Yu was briefed by Sergeant Negrete, he should have recognized that the sergeant had failed to plan for one of the three basic contingencies all DAT leaders must consider – i.e., how to react to foreseeable exigencies created by the suspect. Accordingly, she agreed with a sustained finding for a Class II violation of command responsibilities.

³ The Skelly Officer promptly dismissed this claim, writing:

Lieutenant Yu calculates the criminal investigation as not commencing until November 7, 2018 and concluding on March 6, 2019. It is clear that the criminal investigation commenced on the date of the incident, March 11, 2018, when OPD's Criminal Investigation Division team rolled out to the scene and began its investigation. Moreover, as stated in *Parra v. City and County of San Francisco* (2006) 144 Cal.App.4th 977, 994, a case cited by Lieutenant Yu in his papers, the tolling provision applies: "[i]f the act, omission or other allegation of misconduct is also the subject of a criminal investigation or criminal prosecution."

I believe that the Skelly Officer's analysis and conclusions on this point were correct.

As to Lieutenant Yu, the Compliance Director apparently adopted the analysis of the EFRB and Chief and also sustained a finding for the same violation.

In his Skelly response, Lieutenant Yu maintains that he could not have ordered the on scene officers not to use deadly force if there was a reasonable threat presented to them, or directed the officers to approach an armed and unconscious Mr. Pawlik. However, the basis for the sustained charges does not suggest that Lieutenant Yu should have undertaken such instruction as incident commander.

Lieutenant Yu maintains that he did not need to discuss with Sergeant Negrete what to do if Mr. Pawlik awakened and pointed a gun at officers, since all officers on scene would know what to do, i.e., use deadly force. However, Lieutenant Yu misconstrues the thrust of the criticism, which is that all foreseeable contingencies were neither considered by Sergeant Negrete nor recognized and addressed through appropriate intervention by the lieutenant during the planning phase.

Moreover, Lieutenant Yu fails to address the other identified shortcomings that formed the basis of the sustained charge, such as the failure to advise all supervisors that he was the incident commander, the failure to recognize that Sergeant Negrete was deploying his rifle while serving as DAT leader, and the failure to effectively sequester the involved officers post-incident. Accordingly, this Skelly officer recommends that as to Lieutenant Yu, there be a sustained finding for a Class II violation of command responsibilities.

The Skelly Officer then turned to the question of the appropriate level of discipline, stating (pp. 31-32, emphasis added):

Level of Discipline (Lieutenant Yu):

The Compliance Director, in sustaining a finding for a Class II violation of command responsibilities (MOR 234.00-2), determined that a suspension of five days was warranted:

Given the severity of the violation and the resultant consequences, coupled with my review of the range for this violation listed in the Discipline Matrix, I have determined that a suspension of five (5) days is warranted in this case.

Apparently, in sustaining for the same charge (MOR 234.00-2, Class II violation), the CPRA determined, without analysis, that demotion was the appropriate discipline. The Discipline Committee similarly found a violation of MOR 234.00-2, Class II violation. The Discipline Committee found, without analysis, that demotion was the appropriate discipline.

The OPD Discipline Matrix lists the following violations and penalties for first offenses:

234.00-1 COMMANDING OFFICERS – AUTHORITY AND RESPONSIBILITIES 5-day suspension to termination (Gross dereliction of duty)

234.00-2 COMMANDING OFFICERS – AUTHORITY AND RESPONSIBILITIES Counseling to 5-day suspension

As to Lieutenant Yu, no decision-making body found the requisite “gross dereliction of duty” requirement to move the violation into the Class I category. While OPD’s discipline policy is clear that the Discipline Matrix provides discipline “guidelines,” and that a Chief of Police as decision-maker (and presumably the CPRA, Compliance Director, and Discipline Committee as well) can impose any discipline believed appropriate, the Matrix is intended to guide the decision-maker to consistent and principled disciplinary outcomes.

The Skelly officer may have been persuaded by the demotion determination of CPRA and the Discipline Committee had there been explanation of any aggravating factors that may have warranted such a significant upward departure. And while it is true that Lieutenant Yu made a series of mistakes as set out in the EFRB, Chief of Police and CPRA analyses, no decision-maker found those mistakes so egregious as to constitute a gross dereliction of duty Class I violation. On the other hand, as the key aggravating factor, Lieutenant Yu’s failure as incident commander to perform consistent with OPD expectations and training impacted the quality of the involved officers’ tactical response. Accordingly, this Skelly officer finds and recommends, consistent with the Discipline Matrix, that Lieutenant Yu receive a 5-day suspension for the MOR 234.00-2, Class II violation, the top of the discipline range for this type of offense.

IV. SUMMARY OF STEP 3 MEETING

On December 1, 2020, a Step 3 meeting occurred. Lt. Yu was represented by Steve Welch, his legal counsel. Mr. Welch and Lt. Yu were given the full opportunity to provide argument, comment and insight about the allegations.

Mr. Welch offered several arguments against the discipline imposed.

1. Mr. Welch offered the procedural argument that the statute of limitations precluded the imposition of discipline. While the incident occurred on March 11, 2018, the Notice of Intent to Impose Discipline occurred on July 11, 2019. Therefore, the Department did not complete its investigation within one year of the discovery of the incident by a person authorized to conduct an investigation.
2. Mr. Welch noted that Lieutenant Yu’s plan had several appropriate aspects. According to the IAD report, Lieutenant Yu responded to the scene quickly within 10 minutes of the dispatched call, ensured that the perimeter was set, and appropriately set responsibilities.

Chief Kirkpatrick's Addendum to the EFRB Report noted that Lieutenant Yu took many appropriate actions.

3. Mr. Welch listed several mitigating factors pointing toward reduction of the penalty to a written reprimand. Mr. Welch noted that Lieutenant Yu took many appropriate actions, was truthful during the investigation, and had no prior discipline. When asked about aggravating factors such as Lieutenant Yu's leadership role, the fact that serious consequences occurred, and the threat to the Department's integrity, Mr. Welch proceeded to the argument about the statute of limitations.
4. Mr. Welch responded to several arguments for disciplining Lieutenant Yu.
 - a. Mr. Welch responded to the idea that Lieutenant Yu was responsible for an inappropriate comment that Sergeant Negrete made to Officer Tanaka following the shooting.⁴ Mr. Welch noted that Sergeant Negrete's comment was so soon after the shooting that Lieutenant Yu could not have prevented it. In response, it was noted that the criticism of Lieutenant Yu centered more on his failure to sequester the officers and to prevent them from calling or texting one another.
 - b. Mr. Welch responded to the notion that Lieutenant Yu should have known that Sergeant Negrete was carrying a rifle. Mr. Welch drew a distinction between deploying a rifle and pointing the rifle. He noted the appropriateness of Sergeant Negrete's decision to carry a rifle since he might have needed it.
 - c. Mr. Welch addressed the argument that Lieutenant Yu's plan put the officers in a position of vulnerability since they didn't use the Bearcat for cover. He noted that the officers did use the Bearcat as cover to an extent and that the Bearcat was part of the plan as shown by the fact that the officers waited for it.
 - d. Mr. Welch addressed Officer Tanaka's comment that Sergeant Pierce didn't know who the incident commander was. Mr. Welch noted that this comment was taken out of context and that this issue only applied to Sergeant Pierce.
 - e. Mr. Welch responded to the idea that Lieutenant Yu deferred too much to Sergeant Negrete. First, Mr. Welch cited a PowerPoint from Lieutenant Shannon, the Department expert on command and control. The PowerPoint noted that the commander should not micromanage and that the commander should defer to the experts unless the Sergeant needs guidance. Second, Mr. Welch cited Departmental Policy K-3, which stipulates that

⁴ Negrete expressed his belief that the Officers had been forced to shoot Pawlik.

it is against the law to impose a plan on DAT officers that would deprive them of their duty to protect the public.

Lieutenant Yu was invited to provide his own perspective. He discussed his experience of the incident. After discussing his prior history at the Department, he took responsibility for Sergeant Negrete's decisions. He described his decision-making and acknowledged that no plan is perfect.

V. DISCUSSION

Although IAD initially placed supervisory culpability solely on Sgt. Negrete, they later determined that Sgt. Negrete and Lt. Yu were equally at fault. Accordingly, in both cases they sustained Class 2 violations for failure to supervise/failure to fulfill command responsibilities. As the matter proceeded through the review pipeline, Lt. Yu's offense remained at Class 2 but Sgt. Negrete's was upgraded to a more serious Class 1 violation. Ultimately, the fact that the incident resulted in Pawlik's death was a significant factor in the final decision to terminate Sgt. Negrete. In contrast, the Skelly officer reduced Lt. Yu's initial proposed discipline from a demotion to a five-day suspension, because (a) a five-day suspension was the top of the typical discipline range for a Class 2 violation of MOR 234.00, as set forth in the Disciplinary Matrix, and (b) the Discipline Committee (which recommended demotion) did not explain "any aggravating factors that may have warranted such a significant upward departure [from the typical range]." This ignores, of course, the known aggravating factor provided by the operation's tragic outcome.

A. Culpability

To summarize the detailed analyses by the various reviewers: Although Lt. Yu was not directly involved in the shooting itself, he was the most senior and highest ranking department member present. As Incident Commander, he directly discussed and approved Sgt. Negrete's DAT and operational plan. As highlighted by the CPRA report, that plan had many flaws, foremost among which was the lack of any contingency plan for what to do if Pawlik awakened and did not respond to commands, or if he otherwise failed to cooperate. This flaw should have been readily evident to Lt. Yu.

It is true that Lt. Yu was not responsible for some of Sgt. Negrete's other failures, such as his decision to deploy lethal cover when two other officers already had taken that role, or the fact that he became over committed. Nonetheless, Lt. Yu was ultimately responsible for the limited response scenario deployed by Sgt. Negrete, and was equally, if not more, culpable for its failure. Indeed, Lt. Yu was present nearby monitoring the incident and the radio traffic, which provided him an opportunity to correct or intervene in Sgt. Negrete's actions once Pawlik became active, but he did not do so.

B. Disciplinary Penalty

The disciplinary penalty needs to take into account Lt. Yu's higher rank and his role as Incident Commander during the operation. It also needs to take into account the seriousness of the flaws in that operation, and the tragic results, as both of these elements are substantial aggravating factors. The disciplinary matrix, too, must be taken into account (while recognizing that it is advisory, not binding).

Lt. Yu seeks reduction of the penalty from a five day suspension to a written reprimand. That suggestion must be definitively rejected. Indeed, in my view, the five day suspension that Lt. Yu received was overly lenient in light of his involvement, responsibility, and rank. Further, as prior arbitration decisions involving OPD Personnel have made clear, it is incumbent on the Department to assure that supervisors and managers who oversee operations take full responsibility for their actions, and to avoid disparate treatment concerns that can emerge when a higher ranked officer is disciplined more leniently than the officers who report to them in a critical incident. Reducing the penalty in this instance would further contribute to concerns of disparate treatment.

If Human Resources had the authority to increase a penalty post-Skelly, in my view this would be a fitting occasion to do so. Because it does not have such authority, I recommend sustaining the five day suspension.

VI. CONCLUSION

It is recommended that the grievance be denied and that the five-day suspension be sustained.